



## Information About Brokerage Services

*Texas law requires all real estate licensees to give the following information about brokerage services to prospective buyers, tenants, sellers and landlords.*

### TYPES OF REAL ESTATE LICENSE HOLDERS:

- **A BROKER** is responsible for all brokerage activities, including acts performed by sales agents sponsored by the broker.
- **A SALES AGENT** must be sponsored by a broker and works with clients on behalf of the broker.

### A BROKER'S MINIMUM DUTIES REQUIRED BY LAW (A client is the person or party that the broker represents):

- Put the interests of the client above all others, including the broker's own interests;
- Inform the client of any material information about the property or transaction received by the broker;
- Answer the client's questions and present any offer to or counter-offer from the client; and
- Treat all parties to a real estate transaction honestly and fairly.

### A LICENSE HOLDER CAN REPRESENT A PARTY IN A REAL ESTATE TRANSACTION:

**AS AGENT FOR OWNER (SELLER/LANDLORD):** The broker becomes the property owner's agent through an agreement with the owner, usually in a written listing to sell or property management agreement. An owner's agent must perform the broker's minimum duties above and must inform the owner of any material information about the property or transaction known by the agent, including information disclosed to the agent or subagent by the buyer or buyer's agent.

**AS AGENT FOR BUYER/TENANT:** The broker becomes the buyer/tenant's agent by agreeing to represent the buyer, usually through a written representation agreement. A buyer's agent must perform the broker's minimum duties above and must inform the buyer of any material information about the property or transaction known by the agent, including information disclosed to the agent by the seller or seller's agent.

**AS AGENT FOR BOTH - INTERMEDIARY:** To act as an intermediary between the parties the broker must first obtain the written agreement of each party to the transaction. The written agreement must state who will pay the broker and, in conspicuous bold or underlined print, set forth the broker's obligations as an intermediary. A broker who acts as an intermediary:

- Must treat all parties to the transaction impartially and fairly;
- May, with the parties' written consent, appoint a different license holder associated with the broker to each party (owner and buyer) to communicate with, provide opinions and advice to, and carry out the instructions of each party to the transaction.
- Must not, unless specifically authorized in writing to do so by the party, disclose:
  - that the owner will accept a price less than the written asking price;
  - that the buyer/tenant will pay a price greater than the price submitted in a written offer; and
  - any coincidental information or any other information that a party specifically instructs the broker in writing not to disclose, unless required to do so by law.

**AS SUBAGENT:** A license holder acts as a subagent when aiding a buyer in a transaction without an agreement to represent the buyer. A subagent can assist the buyer but does not represent the buyer and must place the interests of the owner first.

### TO AVOID DISPUTES, ALL AGREEMENTS BETWEEN YOU AND A BROKER SHOULD BE IN WRITING AND CLEARLY ESTABLISH:

- The broker's duties and responsibilities to you, and your obligations under the representation agreement.
- Who will pay the broker for services provided to you, when payment will be made and how the payment will be calculated.

**LICENSE HOLDER CONTACT INFORMATION:** This notice is being provided for information purposes. It does not create an obligation for you to use the broker's services. Please acknowledge receipt of this notice below and retain a copy for your records.

|                                                                       |                |                             |                      |
|-----------------------------------------------------------------------|----------------|-----------------------------|----------------------|
| <b>RentWerx</b>                                                       | <b>9002319</b> | <b>Web@RentWerx.com</b>     | <b>(210)497-8686</b> |
| Licensed Broker /Broker Firm Name or<br>Primary Assumed Business Name | License No.    | Email                       | Phone                |
| <b>Melanie Thomas</b>                                                 | <b>638704</b>  | <b>Melanie@RentWerx.com</b> | <b>(210)497-8686</b> |
| Designated Broker of Firm                                             | License No.    | Email                       | Phone                |
| <b>Melanie Thomas</b>                                                 | <b>638704</b>  | <b>Melanie@RentWerx.com</b> | <b>(210)497-8686</b> |
| Licensed Supervisor of Sales Agent/<br>Associate                      | License No.    | Email                       | Phone                |
| <b>Melanie Thomas</b>                                                 | <b>638704</b>  | <b>Melanie@RentWerx.com</b> | <b>210-497-8686</b>  |
| Sales Agent/Associate's Name                                          | License No.    | Email                       | Phone                |
| <b>Melanie Thomas</b>                                                 | <b>638704</b>  | <b>Melanie@RentWerx.com</b> | <b>210-497-8686</b>  |
| Buyer/Tenant/Seller/Landlord Initials                                 |                | Date                        |                      |

Regulated by the Texas Real Estate Commission

Information available at [www.trec.texas.gov](http://www.trec.texas.gov)

IABS 1-0 Date

RentWerx, 3002 Napier Park Ste. 101, Shavano Park, TX 78231

Phone: 210.497.8686

Fax: 210.247.9571

RentWerx IABS

Produced with zipForm® by zipLogix 18070 Fifteen Mile Road, Fraser, Michigan 48026 [www.zipLogix.com](http://www.zipLogix.com)

Lease Concerning: 20313 Andalusite Way, San Antonio, TX 78264

# RESIDENTIAL LEASE AGREEMENT

## 1. PARTIES TO THE LEASE

The parties to this lease are:

Landlord(s): JAFIII Technologies

Resident(s): Salvador Aldama

## 2. PROPERTY

Owner leases to Resident the following Real Property:

Address: 20313 Andalusite Way

City: San Antonio ZIP: 78264

Legal: CB 5722B (RUBY CROSSING UT-1), BLOCK 13 LOT 49

County Bexar, Texas.

Including the following non-real property items considered collectively as the "Property":

Refrigerator --END

## 3. ORIGINAL TERM OF LEASE

Commencement Date – Upon Signing of this Agreement.

Move-In Date: 09-NOVEMBER-2023Anniversary Date: 31-OCTOBER-2024

## 4. AUTOMATIC RENEWAL OF LEASE

This lease automatically renews on a month-to-month basis unless either party provides the other party written notice of termination no later than **30 days** before the lease expiration date. Oral notice of termination is not sufficient under any circumstances.

If either party fails to provide the other party timely written notice of termination as required, the lease automatically renews on a month-to-month basis. This lease will continue to renew on a month-to-month basis unless either party provides the other with a written notice of termination no later than **30 days** before the lease anniversary date.

The notice of termination given by either party will be effective on the last day of the month following the month in which the notice is given. RentWerx is not obligated to prorate rent even if Resident surrenders the Property before the termination date. This also applies to Military Early Termination in accordance with **SERVICEMEMBERS CIVIL RELIEF ACT ("SCRA") 50 U.S.C. App. §§501-597b1**.

## 5. MONTH TO MONTH RENT INCREASE

If this lease agreement automatically extends into a month-to-month basis, the monthly rent payment will increase by the original lease amount - plus 25% - unless otherwise agreed to in writing for a shorter lease extension. Residents will incur a \$85.00 Month to Month Administration Fee each month until a longer lease extension is arranged in writing.

## 6. RISK MITIGATION FEE

At time of application, and prior to lease signing, the undersigned Resident may have been offered an opportunity to lease the home in accordance with the guidelines for a possible Risk Mitigation Fee based on their combined Resident scores. If this additional fee was presented at application approval, Resident agrees to offer an additional risk mitigation fee in the amount of \$ 0.00 due at lease commencement. Resident has agreed with all of the terms and conditions of this fee prior to lease signing. This administrative fee is non-refundable and will be retained by RentWerx.

## 7. HOME CONDITION GUARANTEE

Within the first five (5) business days of occupying the home, if Resident is not satisfied with the condition of the home as viewed prior to lease signing, Resident may request lease cancellation and receive a full refund to their security deposit, rent, animal fees, lease fee, risk mitigation fee, and application fees. The Resident must vacate the home and turn in all keys & electronic devices to RentWerx. This paragraph does not apply to a lease agreement with a *Site Un-Seen Addendum to Lease* and is subject to Landlord or RentWerx final approval.

Residents: SA& Owner or Owner's Representative: MT

Lease Concerning: \_\_\_\_\_

**8. MOVE-IN ORIENTATION**

All new Residents at lease signing will pay a one-time Move-In Orientation Fee of \$125.00. Within the first three (3) business days of the Resident moving into the home, arrangements may be made at the Residents earliest available time for a walk-through visual inspection and home orientation.

The inspector will provide the Resident with a brief orientation of the home to instruct them on basic home maintenance, including changing air filters, unclogging a garbage disposal, water cut-offs, smoke alarms, fuse & breaker box locations, and Ground Fault Circuit Interrupter (GFCI) resets.

The written report will include interior and exterior photos. A copy of this report will be sent to the Resident and RentWerx. **Any new work order requests must be submitted separately and in writing.**

**9. LEASE FEE = \$395.00**

There is a lease preparation fee of \$395.00 per lease agreement which includes no up-front fee to the Preferred Resident Program in addition the effort to prepare, forward, and offer the convenience of electronic signatures, electronic funds collection, and a lock box move in. A credit of \$100 will be applied for an approved applicant completing a self-assisted showing of the property at lease signing.

**10. MOVE-IN CONDITION**

RentWerx makes no express or implied warranties as to the Property's condition. **Resident has inspected the Property and accepts it AS-IS.**

**11. RENT**

**Monthly Rent:** For each full month during this lease, Resident will pay Landlord monthly rent in the amount of \$1,350.00.

**Due Date:** Rent is due the 1<sup>st</sup> of Each Month.

Resident will ensure Landlord receives the monthly rent on or before the first day of each month during this lease. Weekends, holidays, and mail delays do not excuse Resident's timely payment obligations.

**Prorated Rent:** \$990.00. Prior to and no later than move in, Resident agrees to pay Landlord prorated rent from the **Move-In Date** to the last day of the month in which the lease begins. If lease begins within seven (7) calendar days from the end of the month, Resident will be required to pay the next full month's rent in addition to the pro-rated rent at time of lease signing.

If Resident fails to timely pay any amounts due under this lease, or if any payment is returned by the institution on which it was drawn, RentWerx may require Resident to pay all balances due and future payments in certified funds.

**Resident Benefits Package:** Included with **ALL** lease agreements with RentWerx is the **Resident Benefits Package**. Residents will receive the benefits listed below which are automatically included **for \$45.00 per month**.

- 1) **\$100 Discount at Lease Signing for Completing a Self-Assisted Showing of the Property.** Benefit: Get rewarded for saving yourself time by visiting the property unaccompanied.
- 2) **No Additional Charges for All Rental Payment Options to Include In-Person, ACH, or Check.** Benefit: Residents simply pay their rent plus the \$45.00 per month for an all-inclusive payment.
- 3) **Included Resident Portal for Maintenance, Payment Options, and Electronic Statements.** Benefit: Residents have free access to our Resident Portal to submit maintenance requests, pay online using all included payment options to include the automatic ACH option, and have access to electronic statements.
- 4) **Free Credit Reporting for All Rental Payments made during this Lease to TransUnion.** Benefit: Residents receive the benefit of positive credit reporting for all on-time rental payments to TransUnion.
- 5) **24/7 Maintenance Hotline with Live Phone Support.** Benefit: Residents can reach a live person after hours for emergency maintenance concerns.
- 6) **One Time Returned Payment Fee Forgiveness.** Benefit: RentWerx will grant a one-time waiver of a returned ACH or Check payment fee.
- 7) **NEW!!! \*On Demand Pest Control Service\*** Benefit: Access to high quality quarterly pest control through the RentWerx local affiliate providers. Covered up to \$150.00 per quarter, certain exclusions apply (see page 15 of lease for details).
- 8) **NEW!!! \*Free Lockbox Move In\*** Benefit: Go directly to your new home to move in! No need to come to our office.

**12. METHOD OF PAYMENT**

Resident will pay all rent by: cashier's check, electronic payment, money order, ACH via online Resident portal, or personal check.

**DO NOT SEND RENT PAYMENT CHECKS VIA US MAIL!**

All rent payments must be received by Landlord on or before the 1<sup>st</sup> day of Each Month. Partial payments will not be accepted. **NO CASH IS ACCEPTED!**

Residents: SA& Owner or Owner's Representative: MT

20313 Andalusite Way, San Antonio, TX 78264

Lease Concerning: \_\_\_\_\_

**13. CHARGES DUE AT LEASE SIGNING**

- A. Security Deposit: \$ \_\_\_\_\_
- B. First Month's Rent: \$ \_\_\_\_\_
- C. \*Pro-Rated Rent: \$ 990.00
- D. Monthly Animal Fee: \$ 0.00
- E. Animal Processing Fee: \$ 0.00
- F. Other Fees: \$ 0.00
- G. Lease Fee: \$ 395.00
- H. Move-In Orientation Fee: \$ 125.00
- I. Resident Benefits Package: \$ 45.00
- J. Preferred Resident Program: \$ 33.00
- Total Due at Lease Signing: \$ 1,588.00**

\*All funds must be received prior to Move-In.

**14. SUMMARY OF MONTHLY CHARGES**

- K. Monthly Rent: \$ \$1,350.00
- L. Resident Benefits Package: \$ 45.00
- M. Preferred Resident Program: \$ 33.00
- N. Monthly Animal Fee: \$ 0.00
- Total Monthly Payment: \$ 1,428.00**

**15. SCHEDULED RENT INCREASE**

<sup>x</sup> Rent **WILL NOT** increase during the initial term of this lease agreement as indicated in Paragraph 3.

Rent **WILL** increase to \_\_\_\_\_ with the first increased rent payment due on \_\_\_\_\_.

Continued Monthly Animal Fee: \$ \_\_\_\_\_.

Continued Resident Benefits Package: \$ \_\_\_\_\_.

Total Monthly Payment: \$ \_\_\_\_\_.

<sup>x</sup>Resident **IS** Charged a \$195 Renewal Fee.Resident **IS NOT** Charged a \$195 Renewal Fee.**16. LATE CHARGES**

If RentWerx **does not actually receive** a rent payment in the full amount at the designated place of payment by the **4<sup>th</sup> day of each month** no later than 11:59 PM (through the Resident portal only), Resident will pay RentWerx for each late payment, **A late charge equal to 12% of one month's rent** in accordance with Texas Property Code § 92.0191.

**RETURNED PAYMENT**

Resident will pay RentWerx \$85.00 for each payment Resident tenders to RentWerx which is returned or not honored by the institution on which it is drawn for any reason, plus any late charges until RentWerx receives full payment. If Resident incurs TWO (2) or more Non-Sufficient Fund returned payments, Resident will no longer be allowed to make electronic payments and must submit any further payments in certified funds only.

**17. APPLICATION OF FUNDS**

Regardless of any notation on a payment, RentWerx may apply funds received from Resident first to any non-rent obligations of Resident, including but not limited to, late charges, returned payment charges, repairs, brokerage fees, periodic utilities, animal charges, and then to rent.

**18. SERVING NOTICES**

A \$100.00 charge will be assessed for each Notice to Vacate served or posted to the home for any reason.

**19. CREDIT REPORTING AND COLLECTIONS**

If Resident fails to fulfill the terms and obligations set out within this lease, a negative credit report reflecting the Resident's credit may be submitted to all credit reporting agencies.

**All collection actions will incur a 50% surcharge of the total balance due. If any excess security deposit deductions or end of lease charges are not paid in full within 10 days of written demand, Resident will be placed into collection attempts from a 3<sup>rd</sup> party.**

Residents:  \_\_\_\_\_& Owner or Owner's Representative:  \_\_\_\_\_

20313 Andalusite Way, San Antonio, TX 78264

Lease Concerning: \_\_\_\_\_

## 20. UN-AUTHORIZED ANIMALS

☒ Check this box if NO animals are authorized in this lease.

Unless the parties agree otherwise in writing, Resident may not permit, even temporarily, any animal on the Property (including but not limited to any mammal, reptile, bird, fish, rodent, or insect).

If Resident violates this Paragraph 9 or any agreement to keep an animal on the Property, RentWerx may take the following action:

- A. Declare Resident to be in default of this lease and exercise remedies under Paragraph 27.
- B. Charge Resident, as an additional administrative fee, an equal amount to **One Month's Rent payable to RentWerx** to be applied as an additional animal fee. In addition, the Resident will be charged \$50 per day thereafter per animal for each day Resident violates the lease agreement.
- C. Remove or cause to be removed any unauthorized animal and deliver it to appropriate local authorities by providing at least 24-hour written notice to Resident of Manager's intention to remove the unauthorized animal.
- D. Charge the Resident the total cost to remove any unauthorized animal, exterminate the Property for fleas and other insects, clean and deodorize the Property's carpets and drapes, and repair any damage to the Property caused by the unauthorized animal.

## 21. AUTHORIZED ANIMALS

Check this box if animals are authorized in this lease. Resident may keep the following Animal(s) on the Property.

TYPE: \_\_\_\_\_ BREED: \_\_\_\_\_ AGE: \_\_\_\_\_

GENDER: \_\_\_\_\_ WEIGHT: \_\_\_\_\_ COLOR: \_\_\_\_\_

TYPE: \_\_\_\_\_ BREED: \_\_\_\_\_ AGE: \_\_\_\_\_

GENDER: \_\_\_\_\_ WEIGHT: \_\_\_\_\_ COLOR: \_\_\_\_\_

TYPE: \_\_\_\_\_ BREED: \_\_\_\_\_ AGE: \_\_\_\_\_

GENDER: \_\_\_\_\_ WEIGHT: \_\_\_\_\_ COLOR: \_\_\_\_\_

**One Time Animal Processing Fee:** \_\_\_\_\_.

**Total Monthly Animal Fee:** \_\_\_\_\_.

**A separate Dog Liability Insurance Policy naming RentWerx as "Additional Insured" must be presented prior to move in.**

Resident will allow for a yearly animal inspection of the home.

Resident may not substitute any other animal from the list above without written consent from RentWerx.

## 22. ANIMAL RULES

Resident must comply with the following:

- A. Take all reasonable action to ensure any animal does not violate the rights of other persons.
- B. Comply with all applicable statutes, ordinances, restrictions, homeowner's association rules, or other enforceable regulations regarding any animal.
- C. The animal must have current rabies shots and licenses required by any local, county, or state laws.
- D. Confine any animal that is a dog or cat, when outside, by fences or on leashes under Resident's control.
- E. Promptly remove any animal waste from the Property, including all living areas, garages, storage areas, yards, porches, patios, courtyards, and decks.

**Access:** Resident must remove or confine any animal at any time that the animal is likely to limit or prohibit RentWerx or other person's access to Property in its entirety as permitted by the lease.

**Liability:** Resident is responsible and liable for the entire amount of any damage to the Property or any item in the property, any personal injuries to any person, and any damage to any person's property caused by any animal. This provision applies to all parts of the home to include carpets, drapes, doors, walls, wallpaper, windows, screens, furniture, and appliances as well as landscaping or any other improvements. If an item may not be satisfactorily cleaned, Resident will pay for the replacement cost.

**Assistance, Service, or Emotional Support Animals:** When allowed by applicable laws, we may require written verification on or make other inquiries regarding the disability-related need for assistance, service, or emotional support animals for a person with a disability. We will not charge an animal deposit, additional rent, or other fee for an authorized assistance, service, or emotional support animal. Except as provided by law, all other provisions of this lease apply.

Residents:  \_\_\_\_\_

& Owner or Owner's Representative:  \_\_\_\_\_



20313 Andalusite Way, San Antonio, TX 78264

Lease Concerning: \_\_\_\_\_

**Fraudulent Assistance, Service, or Emotional Support**

**Animals:** Should it be determined that a Resident or Occupant of the Property has allowed an animal to occupy the home under false terms or fraudulent proof as an Assistance, Service, or Emotional Support Animal, Resident shall incur a \$5,000 fee payable to RentWerx, per animal, under this provision.

**Move Out:** Resident will pay any reasonable costs that are necessary to clean, deodorize, de-flea, or repair any part of the Property, including but not limited to the carpets, doors, walls, drapes, wallpaper, windows, screens, furniture, appliances, sod, yard, fences, and landscaping.

**23. ANIMAL INDEMNIFICATION**

Resident will protect, defend, indemnify, and hold Owner, RentWerx, and RentWerx agents harmless from any damages, costs, attorney's fees, and expenses that are caused by the act of any animal or Resident.

**24. PREFERRED RESIDENT / SECURITY DEPOSIT**

**Preferred Resident Program:** As an approved applicant to this program, Resident agrees to pay a **monthly fee of \$33.00** (\$28.00 Insurance Fee and \$5.00 Administration Fee). This Preferred Resident Program is in full compliance with Texas Property Code §92.111. This does not alleviate Resident of any liability for damages incurred. This is an optional program in lieu of placing an all up front security deposit with RentWerx.

For any damage to the home above fair wear and tear after RentWerx conducts a final inspection, an itemized final bill will be presented to the outgoing Resident for immediate payment in accordance with this lease agreement.

Resident agrees to pay for damages above normal fair wear and tear by authorizing RentWerx to charge the outgoing Residents bank account after move out for the maximum amount equivalent to one month's rent.

Resident may elect to terminate the fee in lieu of a deposit and instead pay 2.5 times rent as a refundable security deposit at any time. The Deposit shall be due upon notice of termination. Any prior monthly payments are considered non-refundable.

Salvador Aldama

Account holder Name: \_\_\_\_\_

322282603

Bank Routing Number: \_\_\_\_\_

75652978

Bank Account Number: \_\_\_\_\_

**Security Deposit:** At execution of this lease agreement, Resident will pay a security deposit to RentWerx in the amount of \$ \_\_\_\_\_ by certified funds only to include Cashier's Check, Money Order, or bank wire. "Security Deposit" has the meaning assigned to that term in §92.102, of the Texas Property Code.

**25. NOTICES ABOUT SECURITY DEPOSITS**

**Commencement of Lease Agreement:** At the signing of this document, the security deposit will be governed in accordance to this lease agreement and Texas property code. In the event the Resident does not take occupation of the home, the security deposit, and all associated fees with this lease will be forfeited to RentWerx.

**Interest:** No interest or income will be paid to Resident on the security deposit. RentWerx may place the security deposit in an interest-bearing or income-producing account and any interest or income earned will be paid to RentWerx.

**Refund:** Resident must give RentWerx at least thirty (30) days written notice of surrender before RentWerx is obligated to account for or refund the security deposit. Any refund of the security deposit will be made payable to all Residents named in this lease.

§92.108, Texas Property Code provides that a Resident may not withhold payment of any portion of the last month's rent on grounds that the security deposit is meant for unpaid rent.

Bad faith violations of §92.108 may subject a Resident to liability up to three times the rent wrongfully withheld and reasonable attorney's fees.

The Property Code does not obligate RentWerx to return or account for the security deposit until the Resident surrenders the Property and gives RentWerx a written statement of the Resident's forwarding address, after which RentWerx has 30 days in which to account.

View the Texas Property Code at the Texas Legislature's website: <http://www.statutes.legis.state.tx.us/>

Residents:  \_\_\_\_\_& Owner or Owner's Representative:  \_\_\_\_\_

Lease Concerning: \_\_\_\_\_

## 26. DEDUCTIONS FROM SECURITY DEPOSIT

Landlord may deduct reasonable charges from the security deposit for damages to the Property, excluding normal wear and tear, and all reasonable costs associated to repair the Property to include the following provisions:

- a. Full term of lease or renewable lease term has been completed and fully complied with.
- b. At least 30 days written notice prior to the anniversary / renewal date was presented.
- c. No damage left to the property or its contents beyond normal wear and tear.
- d. The entire property to include appliances, bathrooms, closets, walls, windows, garages, and carpets or other flooring surfaces cleaned.
- e. Replace any burnt out or missing light bulbs, replace HVAC Air Filters and add salt to the water softener.
- f. Mow, Edge, and Maintain the yard (if yard is not in an Owner's Association)
- g. There is no balance of outstanding fees, charges, delinquent rents or unpaid utilities.
- h. Removal of all unauthorized locks or fixtures installed by Resident.
- i. A forwarding address has been provided to the Landlord in writing.
- j. Surrender of all keys, gate remotes, or garage remotes to the Landlord.

If Resident is in default, Resident will incur all attorney's fees, costs of court proceedings, costs to re-lease the home, and any unpaid charges or fees.

## 27. FINAL ACCOUNTING INSPECTION FEE

Resident will incur a \$95.00 Final Accounting Inspection fee upon surrendering the property to RentWerx. This fee covers the in person and written inspection reports, pictures, detailed accounting, documentation, archiving, and mail service associated with the security deposit refund or the final billing procedures for preferred Residents.

## 28. MOVE OUT PROCEDURES

All Residents must provide RentWerx a 30-day written notice of their intentions to not renew their lease agreement. The 30-day notice is effective on the last day of the month following the month in which the notice is given. RentWerx is not obligated to prorate rent even if Resident surrenders the Property before the termination date.

Residents: SA \_\_\_\_\_

**Key Box:** A key box may be placed onto the home to access for approved showings.

**Turnover of Keys:** All keys and garage or gate remotes must be surrendered to RentWerx at the time Resident vacates the home. Rent will not stop being charged until possession of the home is turned over to RentWerx.

**ACH Payments:** Any automatic ACH payments set up by the Resident must be turned off prior to vacating the home. Failing to turn off the automatic ACH payment feature will lead to the Resident paying an additional month of rent which can only be refunded after funds have cleared. There is a \$85.00 charge to account and refund an accidental rent payment.

**Move Out Instructions:** Further move out instructions are posted on the company website and should be referenced as part of this lease agreement.

## 29. UTILITIES

Resident will pay all connection fees, service fees, usage fees, and all other costs and fees for all utilities to the Property

(for example: electricity, gas, water, wastewater, garbage, telephone, alarm monitoring systems, cable, and Internet connections). Unless otherwise agreed, amounts under this paragraph are payable directly to the service providers.

Unless provided by RentWerx, Resident must, at a minimum, keep the following utilities on, if available, at all times this lease is in effect: gas; electricity; water; wastewater; and garbage services.

**Notice: Before signing this lease, Resident should determine if all necessary utilities are available to the Property and are adequate for Resident's use**

## 30. USE AND OCCUPANCY

**Occupants:** The only persons Resident may permit to reside on the Property during the term of this lease are (include names and ages of all occupants):

NONE --END

**Phone Numbers and E-mail:** Resident must inform RentWerx of any changes in Resident's phone numbers or email not later than 5 days after a change.

**Prohibitions:** Unless otherwise authorized by this lease, Resident may not install or permit any of the following on the Property, even temporarily: a spa, hot tub, above-ground pool, trampoline, or any item which causes a suspension or cancellation of insurance coverage or an increase in insurance premiums. Resident may not permit any part of the Property to be used for: (1) any activity which is a nuisance, offensive, noisy, or dangerous; (2) the repair of any vehicle;

& Owner or Owner's Representative: MT \_\_\_\_\_

Lease Concerning: \_\_\_\_\_

(3) any business of any type, including but not limited to child care; (4) any activity which violates any zoning ordinance, owners' association rule, or restrictive covenant; (5) any illegal or unlawful activity; or (6) activity that obstructs, interferes with, or infringes on the rights of other persons near the Property.

### 31. OWNERS ASSOCIATION

The Owner will pay all required payments to the Owners Association in accordance with the by-laws and covenants associated with that Property. Resident must comply with any Owners' Association rules or restrictive covenants affecting the Property. Resident will reimburse Owner for any fines or other charges assessed against Owner for violations by Resident of any owners' association rule or restrictive covenant.

**Non-Compliance:** If Resident violates and is given notice of any Owners Association non-compliance issues to include regulations, covenants, or restrictions an administrative fee will be paid to the Landlord of \$85.00, plus any costs incurred, in addition to any incurred fine imposed by the Association.

**Optional Association Fees:** Landlord is not obligated to pay any non-mandatory or user fees for Resident's use of any common areas or facilities. Example: an optional pool fee.

*It is the responsibility of the Resident to seek out information regarding the rules and regulations associated with living in a home governed under a HOA.*

### 32. PARKING AND VEHICLE RULES

All vehicles parked on the property must be currently licensed, registered, operational and properly parked. Resident agrees to abide by all parking rules established by Landlord or Owners Association rules. No trailers, vehicles on blocks, motorcycles, boats, RV's, or commercial vehicles are allowed on the property without Landlord's prior written approval. Resident is not to repair or disassemble vehicles on the property. Any unauthorized vehicles may be towed at Resident expense. Resident is allowed the following vehicles:

[Honda Civic: NWY6854](#)

### 33. ACCESS BY RENTWERX

**Advertising:** RentWerx may prominently display a "For Sale" or "For Lease" or similarly worded sign on the Property during the last 30 days of this lease or during the last 30 days of any lease renewal period. RentWerx may take interior and exterior photographs and or video images of the Property and use the photographs or images in any advertisements to lease or sell the Property.

**Access:** Before accessing the Property, RentWerx or other licensed agents will attempt to first contact Resident for prior approval, but may enter the Property at reasonable times without notice to make emergency repairs.

**Trip Charges:** If RentWerx or other licensed agents have made prior arrangements with Resident to access the Property and are denied or are not able to access the Property because of Resident's failure to make the Property accessible (including, but not limited to, any occupant, guest or invitee of Resident, pet, or security device prohibiting access to any area of the Property), RentWerx may charge Resident a trip charge of \$85.00.

### 34. WITHDRAWAL OF ACCESS

Resident may withdraw Resident's authorization to place a key box on the Property by providing written notice to RentWerx and paying a fee of **One Month's Rent** as consideration for the withdrawal. No showings of the home will be permitted during this time to coincide with Resident's written notice to vacate the Property.

If RentWerx or other licensed agents are denied or are not able to access the Property after first attempting to contact Resident, RentWerx may charge Resident \$85.00 per incident.

### 35. MOVE-OUT CONDITION

**Move-Out Condition:** When this lease ends, Resident will surrender the Property, normal wear and tear accepted. Resident will leave the Property in a clean condition free of all trash, debris, and any personal property.

#### Definitions:

"Normal wear and tear" means deterioration that occurs without negligence, carelessness, accident, or abuse.

"Surrender" occurs when all occupants have vacated the Property, in manager's reasonable judgment, and the date in which the Resident specifies as the move out date in a written notice has passed – or – the Resident returns keys and access devices that RentWerx provided to Resident under this lease.

"Abandonment" occurs when all of the following occur: All occupants have vacated the Property, in managers reasonable judgment; Resident is in breach of this lease by not timely paying rent; and RentWerx has delivered written notice to Resident, via courier by affixing it to the outside of the main entry door, stating that RentWerx considers the Property abandoned, and Resident fails to respond to the affixed notice by the time required which will be one calendar day from the date of notice.

Residents:  \_\_\_\_\_

& Owner or Owner's Representative:  \_\_\_\_\_



Lease Concerning: \_\_\_\_\_

**Personal Property Left After Move-Out:** If Resident leaves any personal property in the Property after surrendering or abandoning the Property RentWerx may dispose, store, or sell such personal property by following procedures in §54.045(b)-(e), Texas Property Code.

Resident must reimburse RentWerx all reasonable costs for packing, removing, storing, and selling any personal items left in the Property after surrender or abandonment.

### 36. PROPERTY MAINTENANCE

At time of Move In – Residents have had the opportunity to fully inspect the property and accepts the condition of the property “As-Is”.

**Resident's General Responsibilities:** Resident, at Resident's expense, must:

- a. Keep the Property clean and sanitary.
- b. Supply and change heating and air conditioning filters at least once a month.
- c. Supply and replace all light bulbs, fluorescent tubes, and batteries for smoke alarms, carbon monoxide detectors, garage door openers, ceiling fan remotes, and other devices (of the same type and quality).
- d. Maintain appropriate levels of necessary chemicals or matter in any water softener.
- e. Take immediate action to promptly eliminate any dangerous conditions on the Property.
- f. Replace any lost or misplaced keys.
- g. Pay any periodic, preventive, or additional extermination costs desired by Resident, including treatment for bed bugs, unless otherwise required by law.
- h. Know the location and operation of the main water cut-off valve, and all electric breakers and how to switch the valve or breakers off at appropriate times to mitigate any potential damage.
- i. Promptly notify Landlord, in writing, of all needed repairs.

**Deductions of Repair Costs From Monthly Rent:** At no time during this lease agreement will the Resident be allowed to deduct un-authorized repair expenses from the monthly rent.

### 37. YARD MAINTENANCE

Owner, **at Owner's expense**, will maintain the yard. Resident will permit contractor's reasonable access to the yard and will remove any animals from the yard at appropriate times.

<sup>X</sup> Resident, **at Resident's expense**, will maintain the yard as defined in this paragraph. In the event Resident fails to maintain the yard causing it to die or suffer damage,

Resident shall be responsible for the cost of replacement.

**YARD:** This means all lawns, shrubbery, bushes, flowers, gardens, rocks, trees under 8 foot high, or other landscaping and foliage on or encroaching on the Property. This does not include common areas maintained by an owners' association.

**MAINTAIN THE YARD:** Mow, Fertilize, Trim, Control Pests, Control Weeds, Turn Mulch, and Trim Hedges & Bushes.

Resident is not obligated to perform any trimming of trees taller than 8 foot high on or adjoining the property.

**WATERING:** Resident will water the yard at reasonable times as allowed per current local water use guidelines. Resident will be responsible to ensure lawn watering systems are left intact and are working as intended.

**FORCE MAINTENANCE:** Should Resident receive two or more HOA violation letters indicating the yard fails to meet the neighborhood guidelines, Manager may implement monthly routine lawn maintenance at Resident expense.

### 38. POOL MAINTENANCE

Any property with a swimming pool, either above ground or in ground, will be maintained by RentWerx at Owner Expense. Resident must allow access per arranged times and will be liable for any incurred trip charges of \$85.00 per incident for failing to allow for access to the yard or failing to restrict animal access to yard at time of servicing.

### 39. PROHIBITIONS ON MAINTENANCE

**Prohibitions:** If Resident installs any fixtures on the Property, authorized or unauthorized, such as additional smoke alarms, locks, alarm systems, cables, satellite dishes, or other fixtures, such fixtures will become the property of the Landlord. Unless otherwise approved in writing, **Resident May Not:**

- A. Remove any part of the Property or any of the Landlord's personal property.
- B. Remove, change, add, or rekey any locks.
- C. Make holes in the woodwork, floors, or walls, except that a reasonable number of small nails may be used to hang pictures in sheetrock.

Residents:  \_\_\_\_\_

& Owner or Owner's Representative:  \_\_\_\_\_

20313 Andalusite Way, San Antonio, TX 78264

Lease Concerning: \_\_\_\_\_

- D. Permit any water furniture on the Property.
- E. Install additional phone or video cables, outlets, antennas, satellite receivers, or alarm systems.
- F. Alter, replace or remove flooring material, paint walls, or install wallpaper.
- G. Install, change, or remove any fixture, appliance, or non-real-property.
- H. Keep or permit any hazardous material on the Property such as flammable or explosive materials.
- I. Keep or permit any material or item which causes any liability or fire and extended insurance coverage to be suspended or canceled or any premiums to be increased.
- J. Dispose of any environmentally detrimental substance (for example, motor oil or radiator fluid) on the Property.

**Failure to Maintain:** If Resident fails to comply, Landlord may exercise any remedies necessary under this lease agreement to perform whatever action required to bring the Resident into compliance. Resident must immediately reimburse Landlord the reasonable costs incurred plus any administrative or attorney's fees assessed by Landlord.

**Smoking:** Smoking by Resident, Resident's guests, family, or any occupants is not permitted on the Property including the garage and covered patios. If evidence of smoking is found on the property, Resident may be deemed to be in default.

#### 40. REPAIRS

**Notice:** Subchapter B, Chapter 92, of the Texas Property Code governs repair obligations.

**Routine Repair Requests:** All requests for repairs must be in writing and delivered to RentWerx. If Resident is delinquent in rent at the time a repair notice is given, RentWerx is not obligated to make the repair.

**Emergency Repair Requests:** In the event of an emergency related to the condition of the Property that materially affects the physical health or safety of an ordinary Resident, Resident may call the property manager at (888) 811-6780. Ordinarily, a repair to the heating and air conditioning system is not an emergency.

#### AFTER HOURS EMERGENCY MAINTENANCE HOTLINE:

**CALL: (888) 811-6780**

**NOTICE:** If RentWerx fails to repair a condition that materially affects the physical health or safety of an ordinary Resident as required by this lease or the Property Code, Resident may be entitled to exercise remedies under

§92.056 and §92.0561 of the Property Code. If Resident follows the procedures under those sections, the following remedies may be available to Resident: (1) terminate the lease and obtain an appropriate refund under §92.056(f); (2) have the condition repaired or remedied according to §92.0561; (3) deduct from the rent the cost to repair or remedy according to §92.0561; and (4) obtain judicial remedies according to §92.0563.

Do not exercise these remedies without consulting an attorney or carefully reviewing the procedures under the applicable sections. The Property Code presumes that 7 days is a reasonable period of time for the RentWerx to make a diligent effort to repair a condition unless there are circumstances which establish that a different period of time is appropriate (such as the severity and nature of the condition and the availability of materials, labor, and utilities). Failure to strictly follow the procedures in the applicable sections may cause Resident to be in default of the lease.

#### 41.COMPLETION OF REPAIRS

Resident may not repair or cause to be repaired any condition, regardless of the cause, without RentWerx permission. All decisions regarding repairs, including the completion of any repair, whether to repair or replace the item, and the selection of contractors, will be at Landlord sole discretion.

RentWerx is not obligated to complete a repair on a day other than a business day unless required to do so by the Texas Property Code.

#### 42. OWNER HOME WARRANTY

The decision to employ the services of a 3<sup>rd</sup> party Home Warranty is solely up to the Homeowner. RentWerx makes no claim or guarantees of service with a 3<sup>rd</sup> party Home Warranty provider on behalf of the Owner for service requests with their home. This paragraph will serve as notice that the Owner may currently carry, or will carry, a Home Warranty plan with a 3<sup>rd</sup> party provider.

Residents:  \_\_\_\_\_

& Owner or Owner's Representative:  \_\_\_\_\_

Lease Concerning: \_\_\_\_\_

**43. PAYMENT OF REPAIR COSTS**

Except as otherwise specified in this lease, RentWerx will pay to repair or remedy conditions in the Property in need of repair if Resident complies with the procedures for requesting repairs as described in this Paragraph. This includes, but is not limited to, repairs to water heaters, water penetration from structural defects, or heating and air conditioning systems.

RentWerx will NOT pay to repair the following items unless caused by Owner's negligence or conditions caused by Resident, an Occupant, or any guest or invitee of Resident: damage to doors, windows, and screens; damage from windows or doors left open; damage from wastewater stoppages caused by foreign or improper objects in lines that exclusively serve the Property; items that are considered cosmetic in nature with no impact on the functionality or use of the home.

**Non-Real Property RentWerx Will Not Repair:**

Refrigerator --END

The following specific items or appliances that may be non-real property attached with the home will not be repaired by RentWerx or landlord.

**Trip Charges and/or Un-Necessary Work Order Charges:**

Residents will be charged a \$85.00 trip charge from Landlord in addition to any vendor trip charges when a repair person is unable to access the Property with Resident to complete a requested repair, or if the requested repair is unable to be identified with a repairman on site.

**44. SECURITY DEVICES AND DOOR LOCKS**

Subchapter D, Chapter 92, of the Texas Property Code requires the Property to be equipped with certain types of locks and security devices, including (with some exceptions):

(1) window latches on each window; (2) a keyed doorknob lock or keyed deadbolt lock on each exterior door; (3) a sliding door pin lock on each exterior sliding glass door; (4) a sliding door handle latch or a sliding door security bar on each exterior sliding glass door of the dwelling; and (5) a keyless bolting device and a door viewer on each exterior door. RentWerx will arrange the property to be re-keyed and brought under full compliance of all these guidelines within 7 days after occupation of the property.

**Request to Re-Key Home:** All notices or requests by Resident for rekeying, changing, installing, repairing, or replacing security devices must be in writing. Installation of additional security devices or additional rekeying or replacement of security devices desired by Resident must be paid by Resident in advance.

If Resident vacates the Property in breach of this lease, RentWerx may deduct from the security deposit reasonable costs incurred to rekey security devices authorized by the property code section §92.156(e).

**45. SMOKE ALARMS**

Subchapter F, Chapter 92, of the Texas Property Code requires the Property to be equipped with smoke alarms in certain locations. Requests for additional installation, inspection, or repair of smoke alarms must be in writing. Disconnecting or intentionally damaging a smoke alarm may subject Resident to civil penalties and liability for damages and attorney fees under §92.2611, Texas Property Code.

**46. LIABILITY**

RentWerx is not responsible to Resident, Resident's Animals, Resident's guests, family, or occupants for any damages, injuries, or losses to person or property caused by fire, flood, water leaks, ice, snow, hail, winds, explosion, smoke, any Resident animal attack incidents, interruption of utilities, theft, burglary, robbery, assault, vandalism, other persons, condition of the Property, environmental contaminants or other occurrences or casualty losses.

Resident will promptly reimburse RentWerx for any loss, property damage, or cost of repairs or service to the Property caused by Resident, Resident's guests, any occupants, or any approved animals.

**47. HOLDOVER**

If Resident fails to vacate the Property at the time this lease ends Resident will pay RentWerx rent for the holdover period and indemnify RentWerx and prospective Residents for damages, including but not limited to lost rent, lodging expenses, costs of eviction, and attorneys' fees. Rent for any holdover period will be three (3) times the monthly rent, calculated on a daily basis, and will be immediately due and payable daily without notice or demand.

**48. SUBORDINATION & SUB-LEASE**

This lease and Resident's leasehold interest are and will be subject, subordinate, and inferior to any RentWerx liens.

The Resident is not permitted at any time to sub-lease the home without express written permission from RentWerx.

Residents:  \_\_\_\_\_& Owner or Owner's Representative:  \_\_\_\_\_

Lease Concerning: \_\_\_\_\_

**49. ASSIGNMENT**

This lease and tenancy may become subject to assignment by Landlord in the event of a Landlord or Management Company organizational change.

Resident may not assign this lease agreement without written permission from the Landlord subject to application fees and lease modification fees with optional approval by Landlord.

**50. LEASE NULLIFICATION**

This lease agreement is a proprietary document licensed solely for the use of Owners under property management services with RentWerx. In the event RentWerx no longer manages the home on behalf of the Owner this lease agreement, and all terms associated with it, will become null and void upon written notification being sent to all parties of the change in management. This does not exclude sales where title to the home is conveyed to a buyer.

**51. ATTORNEY'S FEES**

Any person who is a prevailing party in any legal proceeding brought under or related to the transaction described in this lease is entitled to recover prejudgment interest, attorney's fees, costs of service, and all other costs of the legal proceeding from the non-prevailing party.

**52. DEFAULT BY RESIDENT**

**Resident Default:** If Resident fails to timely pay all amounts due under this lease or otherwise fails to comply with this lease, Resident will be in default and RentWerx may terminate Resident's right to occupy the Property by providing Resident with at least **one-day written notice** to vacate.

**Unpaid Rents:** All unpaid rents which are payable during the remainder of this lease or any renewal period will be accelerated without notice or demand

**Resident Liability:** Resident will be liable for:

- A. Any lost rents to include cost of re-leasing the Property for any re-leasing fees, advertising fees, utility charges, and other fees necessary to re-lease the Property.
- B. Repairs to the Property for use beyond normal wear and tear.
- C. All costs associated with eviction of Resident, including but not limited to attorney's fees, court costs, costs of service, witness fees, and prejudgment interest.
- D. All costs associated with collection of amounts due under this lease, including but not limited to

collection fees, late charges, and any administration fees.

- E. Any associated costs of re-keying the Property in accordance with Texas Property Code.

RentWerx will attempt to mitigate any damage or loss caused by Resident's breach by attempting to release the Property to acceptable Residents and reducing Resident's liability accordingly.

**Lease Reinstatement Fee:** If Resident is found to be in default of this lease agreement and pursues options to remain in the home, Landlord will charge a \$250 Lease Reinstatement Fee.

**53. EARLY TERMINATION - INVOLUNTARY**

This lease begins on the Commencement Date and ends on the Anniversary date unless automatically renewed, extended by written agreement, or terminated under Resident default. Resident is not entitled to early termination due to voluntary or involuntary job or school transfer, changes in marital status, loss of employment, loss of co-Residents, changes in health, purchase of property, or death.

Residents may have special statutory rights to terminate the lease early in certain situations involving family violence, military deployment or transfer, or certain sex offenses with adequate court or law enforcement documentation.

**Military:** If Resident is or becomes a service member or a dependent of a service member, Resident may terminate this lease by delivering to RentWerx a written notice of termination and a copy of an appropriate government document providing evidence of: (a) entrance into military service; (b) military orders for a permanent change of station (PCS); or (c) military orders to deploy with a military unit for not less than 90 days.

Military Termination is effective on the 30th day after the first date on which the next rental payment is due after the date on which the notice is delivered. §92.017, Texas Property Code governs the rights and obligations of the parties under this paragraph in addition to:

**SERVICEMEMBERS CIVIL RELIEF ACT ("SCRA") 50 U.S.C. App. §§501-597b1**

**Family Violence:** Resident may terminate this lease if Resident provides RentWerx with a copy of a court order described under §92.016, Texas Property Code protecting Resident or an occupant from family violence committed by a co-Resident or occupant of the Property. If the family violence is committed by someone other than a co-Resident or co-occupant of the Property, Resident must give a **30 day** written notice of termination.

Residents:  \_\_\_\_\_& Owner or Owner's Representative:  \_\_\_\_\_

20313 Andalusite Way, San Antonio, TX 78264

Lease Concerning: \_\_\_\_\_

**Sex Offenses or Stalking:** Resident may have special statutory rights to terminate this lease in certain situations involving certain sexual offenses or stalking, if the Resident provides RentWerx with the documentation required by §92.0161, Texas Property Code.

#### 54. EARLY TERMINATION - VOLUNTARY

**OPTION ONE – Replacement Resident Option:** In the event a Resident may request an early lease termination, Resident may request Landlord to seek an approved replacement Resident and must strictly adhere to ALL of the following procedures:

**NOTE: Landlord is not obligated to attempt to find another Resident in accordance with this paragraph.**

ONE - Resident must pay the early termination fee equivalent to One Month's Rent plus a \$200 Admin Fee.

TWO - Resident must specify a move out date.

THREE - Upon receipt of payment, Landlord will begin to advertise the property in the attempts to locate a replacement Resident at terms equal to or acceptable to Landlord per the current lease agreement.

FOUR - Any replacement Resident must, in Landlord's discretion, be acceptable as a Resident and must sign a new lease agreement with terms not less favorable to Landlord than this lease.

FIVE - Resident will continue to pay the agreed to monthly rent, and all utilities, until a replacement Resident is located and a new lease agreement is executed.

SIX - Resident will vacate the home on or before the specified date given for their early move out. All security deposits are then subject to the guidelines contained in this lease.

**OPTION TWO - Optional Buyout Program:** In the event of a voluntary early lease termination, Resident may request an optional buyout of the remaining lease agreement terms. This program is offered under the sole discretion of Landlord approval with strict compliance.

ONE - Resident will pay Landlord the early termination fee equivalent to One Month's Rent plus a \$200 Admin Fee.

TWO – Resident will pay an additional two month's equivalent of rent as a Landlord Admin Fee prior to vacating the home.

THREE – Landlord will amend this lease agreement to end 60 days from the time of surrender.

\*Residents will be allowed to pro-rate monthly rent allowing them to vacate as soon as possible.

\*\*All security deposits are then subject to the guidelines contained in this lease.

#### 55. REPRESENTATIONS

Resident's statements in this lease and any application for rental are material representations. Each party to this lease represents that he or she is of legal age to enter into a contract. If Resident makes a misrepresentation in this lease or in an application for rental, Resident is in default.

#### 56. ADDENDA

Incorporated into this lease are the following addenda. RentWerx may amend the Rules and Regulations as part of this lease agreement with written notice.

- X Move-In Procedures and Optional Lockbox Access
- Sight Un-Seen Addendum

#### 57. SPECIAL PROVISIONS

NONE --END

#### 58. AGREEMENT OF PARTIES

**Entire Agreement:** There are no oral agreements between RentWerx and Resident. This lease contains the entire agreement between all parties.

**Binding Effect:** This lease is binding upon and insures to the benefit of the parties to this lease and their respective heirs, executors, administrators, or successors.

**Severable Clauses:** Should a court find any clause in this lease unenforceable, the remainder of this lease will not be affected and all other provisions in this lease will remain enforceable.

**SEX OFFENDERS:** Landlord does not agree to rent, lease, or otherwise grant any occupancy or residency to sexual offenders or sexual predators. This includes any residency, either as Residents themselves or guest of our Residents for any duration, including long term or short term residency. If any Resident or Occupant should become a registered sex offender, or sexual predator in any state or nations by a government authority, Resident must notify Landlord in writing within one business day and all Residents must adhere to the following terms:

Residents:  \_\_\_\_\_

& Owner or Owner's Representative:  \_\_\_\_\_



20313 Andalusite Way, San Antonio, TX 78264

Lease Concerning: \_\_\_\_\_

- a. All Residents agree to voluntarily vacate the property when given a 7-day notice by Landlord that a Sexual Predator has occupied the property.
- b. The security deposit shall be forfeited as liquid damages. Resident waives notice from Landlord for any claims to a security deposit.
- c. Resident shall be responsible for the cost of re-leasing the property and for any losses suffered by the Landlord including lost rent, leasing fees, advertising fees, attorney's fees, court costs, and any other costs as a result of the vacancy of enforcing this lease.

named person to remove Resident's personal property and refund the security deposit, less deductions, to the named person. §92.014, Texas Property Code governs procedures to follow in the event of a Resident's death.

Name: Mylinda Aldama  
 Phone: 2103741685  
 Address: 268 Highway Dr, San Antonio Tx, 78219  
 E-mail: Mylinda0215@gmail.com

## 59. INFORMATION

**Services to Home:** It is Resident's responsibility to determine, before signing this lease if all services such as utilities, connections, schools boundaries, and transportation are accessible to or from the Property and such services are sufficient for Resident's needs and wishes.

**Owners Home Mortgage:** RentWerx, a party to this lease agreement, has no knowledge of whether the Owner is delinquent in the payment of any lien against the Property.

**Request for Rental Payment History:** RentWerx is not obligated to respond to any requests for Resident's rental and payment history from a mortgage company or other prospective landlord / property manager until Resident has paid the \$45.00 payment history charge. Resident must not be breach of lease at the time.

**Next of Kin:** If all occupants over 18 years of age die during this lease, RentWerx may permit the person named below to access the Property at reasonable times to permit the

## 60. LEAD-BASED PAINT

**LEAD WARNING STATEMENT:** Housing built before 1978 may contain lead-based paint. Lead from paint, paint chips, and dust can pose health hazards if not managed properly. Lead exposure is especially harmful to young children and pregnant women. Before renting pre-1978 housing, lessors (landlords) must disclose the presence of known lead-based paint and / or lead-based paint hazards in the dwelling. Lessees (Residents) must also receive a federally approved pamphlet on lead poisoning prevention.

### DISCLOSURE:

**Presence of lead-based paint and / or lead-based paint hazards.** Landlord has no knowledge of lead-based paint and / or lead-based paint hazards in the Property.

### Records and reports available to Landlord.

Landlord has no reports or records pertaining to lead-based paint and / or lead-based paint hazards in the Property.

**RESIDENT'S ACKNOWLEDGEMENT:** Included with this lease agreement is a link to view the pamphlet entitled Protect Your Family from Lead in Your Home.

<https://RentWerx.com/EPA>

## 61. SIGNATURES

Owner Signature \_\_\_\_\_ Date \_\_\_\_\_

RentSigned by:  
Salvador Aldama 11/02/2023  
 Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

Owner Signature \_\_\_\_\_ Date \_\_\_\_\_

Resident Signature \_\_\_\_\_ Date \_\_\_\_\_

**And / Or signed on behalf of Landlord (Owner) under written property management agreement:**

RentSigned by:  
Melanie Thomas 11/02/2023  
 On behalf of RentWerx, LLC - dba: **RentWerx**; TREC License #9002319 \_\_\_\_\_ Date \_\_\_\_\_

Residents: SA \_\_\_\_\_

& Owner or Owner's Representative: MT \_\_\_\_\_



## **RESIDENT BENEFITS PACKAGE**

**\$45.00 Per Month**

Included with **ALL** lease agreements under RentWerx is the **Resident Benefits Package**. Residents will receive the benefits listed below which are automatically included **for \$45.00 per month**.

**1. \$100 Discount at Lease Signing for Completing a Self-Assisted Showing of the Property.**

Benefit: Get rewarded for saving yourself time by visiting the property unaccompanied.

**2. No Additional Charges for All Rental Payment Options to Include In-Person, ACH, or Check.**

Benefit: Residents simply pay their rent plus the \$41.00 per month for an all-inclusive payment.

**3. Included Resident Portal for Maintenance, Payment Options, and Electronic Statements.**

Benefit: Residents have free access to our Resident Portal to submit maintenance requests, pay online using all included payment options to include the automatic ACH option, and have access to electronic statements.

**4. Free Credit Reporting for All Rental Payments made during this Lease to TransUnion.**

Benefit: Residents receive the benefit of positive credit reporting for all on-time rental payments to TransUnion.

**5. 24/7 Maintenance Hotline with Live Phone Support.**

Benefit: Residents can reach a live person after hours for emergency maintenance concerns.

**6. One Time Returned Payment Fee Forgiveness. (\$85.00)**

Benefit: RentWerx will grant a one-time waiver of a returned ACH or Check payment fee.

**7. NEW!!! \*On Demand Pest Control Services\***

Benefit: Access to high quality quarterly pest control by request through the RentWerx local affiliate providers. - Covered up to \$150.00 per quarter. Anything over this amount will be paid by the owner/tenant.

**Covered:**

- Basic Roaches
- Ants
- Spiders
- Silverfish
- Scorpions
- Ticks/Fleas
- Yellow Jackets/Wasps

**Not Covered:**

- German Roaches
- Wood Destroying Insects (Termites, Carpenters Ants)
- Rodents
- Wildlife (Trapping)
- Bedbugs
- Infestations/Follow up visits

**8. NEW!!! \*Free Lockbox Move In\***

Benefit: Go directly to your new home to move in! No need to come to our office making this a touchless process!

**Frequently Asked Questions:**

Can I opt out of this Resident Benefits Package? No. RentWerx provides the Resident Benefits Package to all Residents.

Tenants: SA

RentWerx

& Owner or Owner's Representative: MT



## Tenant to Owner - Buyer Incentive Program

Owning a home can be one of the safest investments you can make, and now is a great time to buy a home of your own! The SaleWerx team is here to help you and your family achieve the dream of home ownership through our **“Tenant to Owner”** Buyer Incentive Program.

### **This program offers tenants a Credited Rebate upon successful purchase of a new home.**

Credited Rebate amounts are based upon the sales price of the purchased home.

| Purchase Price        | Credited Rebate Amount |
|-----------------------|------------------------|
| Up to \$200,000       | \$1,000 Credit         |
| \$200,001 - \$250,000 | \$1,250 Credit         |
| \$251,001 - \$300,000 | \$1,500 Credit         |
| \$300,001 - \$350,000 | \$1,750 Credit         |
| \$350,000+            | \$2,000 Credit         |

EXAMPLE: If a RentWerx tenant purchases a home for \$253,000 utilizing the services of a Realtor® with SaleWerx, the tenant will be eligible to receive a Credited Rebate towards their final closing costs of \$1,500.

To qualify for this program, a RentWerx tenant must be current on all rental payments, agree to the terms of the TXR Form 1501, Residential Buyer/Tenant Representation Agreement, and abide by the existing lease agreement.

**Credit Repair:** Ask us about our credit repair affiliation programs.

**Early Termination:** We have options for ending a lease agreement early to purchase a home.

Visit [www.SaleWerx.com/BuyersProgram](http://www.SaleWerx.com/BuyersProgram) to learn more and sign up for this program!

By signing this informational flyer, you are only acknowledging you have been presented this program in writing at lease signing. To sign up, visit the link listed above.

11/02/2023

RS  
SA

Tenant

Date

Tenant

Date